Abbott v. *Perez*, 585 U. S. 579, 608–609 (2018). And, as to both claims, the District Court's analysis departed from *Callais*. Under *Callais*, the District Court was required to deny relief unless the plaintiffs' alternative map performed "just as well" with respect to *all* of the State's constitutionally permissible districting criteria. 608 U. S., at 119. Yet, the District Court found a violation even though the plaintiffs' alternative map would not perform just as well as to the State's constitutionally permissible criteria of keeping together the Gulf Coast community of interest and avoiding the pairing of incumbents. The District Court also failed to follow our instruction in *Callais* that the mere fact that voters of different races vote for different parties is not relevant to proving racially polarized voting patterns. See *id.*, at 119–120.

The State has also made a strong showing of irreparable harm and that the equities and public interest favor it. We have repeatedly cautioned that lower federal courts should not "alter the election rules on the eve of an election." *Republican National Committee* v. *Democratic National Committee*, 589 U. S. 423, 424 (2020) (*per curiam*). Here, the District Court interposed itself into Alabama's ongoing efforts to conduct its imminent 2026 congressional elections under maps that its elected representatives selected. Its view that conducting the elections under court-imposed maps would be more convenient for the State was not a valid justification for that intervention. While federal courts should not impose changes close to an election, *ibid.*, States are free to decide for themselves whether last-minute changes to an election are in their best interests.

The applications for stay presented to JUSTICE THOMAS and by him referred to the Court are granted. The May 26, 2026, order of the United States District Court for the Northern District of Alabama, case Nos. 2:21–cv–1530 and 2:21–cv–1291 is stayed pending the timely docketing of the appeal in this Court. Should the jurisdictional statement be timely filed, this order shall remain in effect pending this

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Court's action on the appeal. If the appeal is dismissed, or the judgment affirmed, this order shall terminate automatically. In the event jurisdiction is noted or postponed, this order will remain in effect pending the sending down of the judgment of this Court. The May 26, 2026, order of the United States District Court for the Northern District of Alabama, case No. 2:21–cv–1536, is stayed pending the timely filing of a petition for a writ of certiorari. Should the petition for a writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for a writ of certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court.

It is so ordered.

JUSTICE SOTOMAYOR, with whom JUSTICE KAGAN and JUSTICE JACKSON join, dissenting.

Before the Court are two paths. Down one lies an orderly election, held under a tried-and-tested congressional map that protects Black Alabamians' right to vote and with which all voters, elections officials, and candidates alike are familiar. Down the other lies a chaotic election, held under a never-before-used congressional map that intentionally discriminates against Black Alabamians, that Alabama adopted in unashamed defiance of a prior court order directly affirmed by this Court, and that will require officials to change the voter registrations of hundreds of thousands of voters in just days at best, a task that Alabama previously represented would take months.

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The majority chooses the second path and disregards both democratic values and the rule of law. I respectfully dissent.

I

This is now the third time these cases have come before the Court. See *Merrill* v. *Milligan*, 595 U. S. 1197 (2022); *Allen* v. *Milligan*, 599 U. S. 1 (2023); *Allen* v. *Caster*, 608

U. S. —— (2026). Each turn reveals just how unconscionable the Court's action is today.

This saga began in 2021, after Alabama adopted a new congressional map following the 2020 census. That map had only one majority-Black congressional district. Black Alabamians challenged this first map, alleging that it violated §2 of the Voting Rights Act, 52 U. S. C. §10301. A three-judge District Court agreed, holding that the map likely had a racially discriminatory effect and violated the Voting Rights Act by diluting Black Alabamians' voting strength. It therefore ordered Alabama to adopt "a congressional redistricting plan that include[d] either an additional majority-Black congressional district, or an additional district in which Black voters otherwise have an opportunity to elect a representative of their choice." *Singleton* v. *Merrill*, 582 F. Supp. 3d 924, 936 (ND Ala. 2022). The latter is commonly referred to as an "opportunity district."

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That injunction prompted the first trip to this Court. At the time, Alabama claimed to be in a predicament. The District Court had issued its injunction in January 2022, roughly four months ahead of Alabama's primary election in May 2022. By Alabama's telling, four months was not enough time to change congressional maps, so it sought a stay of the injunction from this Court, arguing that "this overhaul of Alabama's congressional map at this late hour would require the last-minute reassignment of hundreds of thousands of voters to new districts." Application in *Merrill* v. *Milligan*, O. T. 2021, No. 21A375, p. 38 (*Merrill* Application). This "chaos," the State argued, would harm "not only the State," but also "voters and candidates across the State." *Ibid.*

This Court granted the stay. *Merrill*, 595 U. S., at 1197. It also agreed to review the District Court's order and remedy. See *ibid.* Two Members of this Court expressed concern that "[t]he District Court's order would require heroic efforts by . . . state and local authorities in the next few weeks—and even heroic efforts likely would not be enough

to avoid chaos and confusion." *Id.*, at 1199 (KAVANAUGH, J., joined by ALITO, J., concurring). Thus, this Court allowed the map that the District Court held unlawful to govern the 2022 election.

Then, 18 months later, after full merits briefing and argument, this Court affirmed the District Court's order and finding of discriminatory effect, concluding that the District Court had "faithfully applied our precedents and correctly determined that" Alabama's congressional map unlawfully discriminated against Black Alabamians. *Allen*, 599 U. S., at 23. As to the District Court's ordered remedy, the Court rejected Alabama's objections that drawing a second opportunity district would offend the Constitution, writing that "a faithful application of our precedents and a fair reading of the record before" the Court "d[id] not bear . . . out" the State's objections. *Id.*, at 42.

On remand, and under the District Court's order that this Court had just affirmed, Alabama was given the opportunity to remedy the Voting Rights Act violation. Alabama did not rise to the occasion. Rather than adopt a map with the second district that this Court had just held was required to remedy unlawful racial discrimination, Alabama doubled down, adopting the 2023 Redistricting Plan, which also lacked a second opportunity district. Plaintiffs then amended their complaints in these cases to challenge the 2023 Redistricting Plan, and the District Court held an 11-day trial on the legality of the new map. It heard testimony from 51 witnesses, received almost 800 exhibits, and considered many volumes of written submissions. At the end of that trial, the District Court concluded once again that Alabama's failure to draw a second opportunity district had a discriminatory effect. It then found that Alabama had not merely "refuse[d] to satisfy" its prior order to remedy racially discriminatory vote dilution, but in fact had gone out of its way to make it "mathematically impossible" to do so. *Singleton* v. *Allen*, 782 F. Supp. 3d 1092, 1355 (ND Ala. 2025) (*per curiam*). "[W]ith great reluctance and dismay and even greater re-

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